

CITY CONTRACT NO. _____

**MAINTENANCE AGREEMENT
BETWEEN THE CITY OF CHEYENNE AND
THE SWEETGRASS OWNERS ASSOCIATION AND
THE SWEETGRASS COMMERCIAL OWNERS ASSOCIATION**

1. **Parties.** This Maintenance Agreement ("MA") is made and entered into by and between The Sweetgrass Owners Association ("SOA") and The Sweetgrass Commercial Owners Association ("COA"), both c/o Sweetgrass Land Co. LLC., 1825 Campstool Road, Cheyenne, Wyoming 82007, herein collectively referred to as the Sweetgrass Associations ("SA"), and the City of Cheyenne, a municipality organized and existing under the laws of the State of Wyoming ("City"), 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, (collectively referred to as "Parties").

2. **Ownership Interests.** The City is the owner of parcels of land consisting of approximately 4.33 acres combined, legally described as Tracts D, E, F, H, J, K, L, U, and T, Sweetgrass, 1st Filing and 2nd Filing, City of Cheyenne, Laramie County, Wyoming, and legally transferred to the City pursuant to an instrument recorded in Book 2652, Page 1179, in the Office of the County Clerk of Laramie County, Wyoming. See exhibit attached.

3. **Purpose.** The purpose of this MA is to outline responsibilities for the maintenance of a ten (10) foot concrete trail (Greater Cheyenne Greenway or "Greenway") and enhanced landscaping and irrigation that will be constructed within the above-referenced tracts of land owned by the City and for areas located within the public right-of-way located within Sweetgrass, 1st and 2nd Filings. It is mutually understood and agreed that the Greenway, as well as enhanced landscaping and irrigation, will be constructed and installed at the expense of the Sweetgrass Developers or entities other than the City and shall be designed and constructed to City Greenway standards and other specifications as found in the City of Cheyenne and Board of Public Utilities' Construction Specifications and Standard Drawings, 2014.

This MA shall remain in full force and effect from the effective date of this MA until January 1, 2030, or unless sooner terminated in accordance with the provisions of Section 7 of this MA. This MA may not be extended or renewed except pursuant to a written instrument executed by authorized representative of the Parties.

4. **Definition.** "Enhanced Landscaping" consists of any landscaping on the City owned property other than seeded, dryland grass.

5. Construction of Greenway on Tract D. Construction of Greenway on Tract D, City-owned property shall be completed by Developer at the time of construction of the proposed LCCC/Sweetgrass Greenway underpass.

6. Responsibilities of the City. The City shall be responsible for maintenance as follows:

- i. Ten (10) foot concrete trail care (Greater Cheyenne Greenway). The City shall assume all maintenance responsibilities including, without limitation, trail repair, trail replacement, and snow removal for all portions of the ten (10) foot concrete trail (Greater Cheyenne Greenway) upon acceptance by the City. The repair, replacement, and other maintenance of the trail shall conform to industry standards, practices, and procedures.
- ii. Landscaping along the concrete trail (Greater Cheyenne Greenway) for City Maintenance. The City shall mow approximately six (6) feet on either side of the Greenway path in areas landscaped with dryland grasses. Any deciduous trees should be placed a minimum of six (6) feet from the edge of path and any evergreen trees should be placed a minimum of fifteen (15) feet from edge of path. All landscaped areas beyond the six (6) foot mowing depth shall be the responsibility of an entity other than the City.

7. Responsibilities of SA.

- i. Improvement within City owned tracts and Public Right-of-Way, Review, and Approval. All improvement, including landscaping provided within public rights-of-way and City-owned tracts shall be reviewed and approved subject to the Site Plan Review process in the Unified Development Code. The SA shall maintain and replace as needed, all Enhanced Landscape and irrigation installed within City owned tracts and public rights-of-way in accordance with the Site Plan Review approval.
- ii. Public sidewalks, Maintenance. Nothing in this paragraph shall be construed as relieving the SA, or its successors or assigns, from complying with sidewalk maintenance obligations imposed on adjacent landowners as provided by the Cheyenne City Codes. All sidewalks located on City-owned tracts or within public rights-of-way are the responsibility of the SA or the lot owner, to include snow removal. All sidewalks shall be constructed in accordance with City construction standards.

- iii. Enhanced Landscape within City owned tracts and Public Rights-of-Way, Maintenance. The SA or entity other than the City, agrees to provide, install, and maintain all enhanced landscaping, irrigation taps, irrigation systems, and components for both the City-owned tracts and within the public rights-of-way and maintenance shall be in perpetuity. The City shall not be responsible for any damage to Enhanced Landscaping or irrigation components that occurs during routine maintenance of Greenway facilities. If chemicals are used for weed control, the SA shall comply with manufacturers' recommendations and applicable federal, state, and municipal laws and ordinances relating to herbicides and other chemical control agents.
 - iv. Private Trail Connections. All private connections to the Greater Cheyenne Greenway shall be designed in accordance with City construction standards. The benefitting party shall assume all maintenance and liability of said connection.
 - v. Water and Sewer Mains, Repair, and Maintenance. In the event that the Cheyenne Board of Public Utilities must repair or do any maintenance at any of the existing water or sanitary sewer mains within the City's rights-of-way, roundabout landscape areas, or lands owned by the City for purposes of the Greater Cheyenne Greenway, the Cheyenne Board of Public Utilities shall not be held responsible for damages to the landscape boulders, stones, steppers, or Enhanced Landscaping.
8. Insurance. The SA shall file a Certificate of Insurance with the City of Cheyenne verifying each type of insurance coverage listed below. The Certificate of Insurance shall be submitted to and approved by the City of Cheyenne prior to commencement of performance under this MA.

i. Insurance Coverage:

<u>Type of Coverage</u>	<u>Minimum Policy Requirements</u>
Operations: Explosion, Collapse and Underground	\$2,000,000 Aggregate
Business Automobile Liability	\$1,000,000 (Combined Single)
Workers' Compensation OR Employer's Liability	Statutory \$500,000 Each Accident \$500,000 Each Disease-Policy \$500,000 Disease/Each Employee

- ii. It is understood and agreed that these policies are primary and not contributory. All policies required under this MA shall be in effect for the duration of this MA. The SA shall immediately notify in writing the City Risk Manager, City Clerk, and City Attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this MA.
- iii. The City of Cheyenne shall be named as an additional insured on the insurance policies to be provided by the SA pursuant to this MA, except workers' compensation, and the SA shall provide copies of endorsements providing this coverage.
- iv. The City has the right to reject a certificate of insurance if any insurance company, selected by the SA to provide the insurance coverages required by this MA, is widely regarded in the insurance industry as financially unstable. Any insurance company providing coverage under this MA shall have a minimum A.M. Best rating of A - (excellent).
- v. All subcontractors engaged by the SA shall provide insurance coverages at least equivalent to those required of the SA under this MA. The City has the right to review the insurance certificates of any and all subcontractors engaged by the SA to perform its responsibilities under this MA.

9. Indemnity. In entering into this MA, the SA agrees to defend, hold harmless, and indemnify the City of Cheyenne, its officials, employees, agents and authorized volunteers against any and all claims and costs, including attorney's fees, arising during or resulting from the SA's performance of its responsibilities under this MA, and the SA shall carry insurance as set forth in this MA. The SA acknowledges its understanding of this paragraph and realizes that it may incur financial obligations to the City.

10. Responsibilities of City. The City shall assume maintenance of the ten (10) foot concrete trail (Greater Cheyenne Greenway) including repair and replacement of the trail and snow removal in accordance with City snow removal policies.

11. Default; Remedies.

- i. Default. Each and every term and condition herein shall be deemed a material element of this MA. In the event either party shall fail or refuse to perform according to the terms of this MA, such party may be declared in default.

- ii. Remedies. In the event a party declares the other party in default hereto, said party declaring default shall notify the defaulting party in writing and such defaulting party shall be allowed a period of fifteen (15) days to cure said default. In the event that the default remains uncorrected, the party not in default may elect to: (a) terminate this MA and seek damages; (b) treat the MA as continuing and require specific performance; or (c) avail itself of any other remedy at law or equity. In addition, if the SA fails to perform in accordance with this MA, the City may elect to make good such deficiencies and seek reimbursement of its costs and expenses from the SA.

12. General Provisions.

- i. Amendments. This MA may not be modified, revised, or amended except pursuant to one or more written instruments duly executed by the Parties hereto.
- ii. Applicable Law. The construction, interpretation, and enforcement of this MA shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this MA and over the Parties. The venue shall be the First Judicial District, Laramie County, Wyoming.
- iii. Assignments. This MA shall be binding upon and inure to the benefit of the Parties hereto and their respective heirs, successors, transferees, and permitted assignees. Neither Party shall assign this MA without the express written consent of the other Party.
- iv. Entirety of Agreement. This MA, consisting of seven (7) pages, and Exhibit A, consisting of two (2) pages, represents the entire and integrated agreement between the Parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.
- v. Force Majeure. Neither Party shall be liable to perform under the MA if such failure arises out of causes beyond control and without the fault or negligence of said Party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather.

- vi. Notices. All notices arising out of or from the provisions of this MA shall be in writing and shall be served upon the other Party by regular mail, by personal delivery, or by e-mail transmission to the following addresses:

Sweetgrass:

Sweetgrass Associations
c/o Sweetgrass Land Co. LLC
1825 Campstool Road
Cheyenne Wyoming 82007
E-mail: d3lummis@gmail.com

City of Cheyenne:

City of Cheyenne
Attn: Jeanie Vetter
2101 O'Neil Avenue, Room 202
Cheyenne, Wyoming 82001
E-mail: jvetter@cheyennecity.org

Either party may change the place, method, and person to receive notice by written notification to the other party or by e-mail to the address above

- vii. Governmental Immunity. The City does not waive its governmental immunity by entering into this MA and the City fully retains all immunities and defenses provided by law, Wyo. Stat. § 1-39-101, *et seq.*, with respect to any claims, demands, causes of action, injuries or damages, whatsoever, arising in any way from this MA.
- viii. Third Party Beneficiary Rights. The Parties do not intend to create in any other individual or entity, the status of third-party beneficiary and this MA shall not be construed so as to create such status. The rights, duties, and obligations contained in this MA shall operate only between the Parties to this MA and shall inure solely to the benefit of the Parties to this MA. The provisions of this MA are intended only to assist the Parties in determining and performing their obligations under this MA. The Parties to this MA intend and expressly agree that only Parties signatory to this MA shall have any legal or equitable right to seek to enforce this MA, to seek any remedy arising out of a Party's performance or failure to perform any term or condition of this MA, or to bring an action for the breach of this MA.
- ix. As to any duty or responsibility assigned herein to either SAO or SCO, those parties, by agreement between them, may assign the duty or responsibility to one or the other or may retain joint responsibility.

13. Signatures. In witness whereof, the Parties to this MA, through their duly authorized representatives, have executed this MA on the days and dates set out below and certify that they have read, understood, and agreed to the terms and conditions of this MA as set forth herein.

SWEETGRASS HOME OWNERS ASSOCIATION

Date

Doran E. Lummis, Member

ASSOCIATION

SWEETGRASS COMMERCIAL OWNERS

Date

Doran E. Lummis, Member

CITY OF CHEYENNE

Date

Patrick Collins, Mayor

(SEAL)

Attest:

Kristina F. Jones, City Clerk



EASEMENT NOTES

- 1. ALL UTILITIES TO BE PROVIDED BY PUBLIC AGENCIES - CITY OF CHEYENNE BOPU - FIRE PROTECTION TO BE PROVIDED BY CHEYENNE FIRE & RESCUE - THE SURFACE ESTATE OF THE LAND TO BE SUBDIVIDED IS SUBJECT TO FULL AND EFFECTIVE DEVELOPMENT OF THE MINERAL ESTATE
- 2. THE SURFACE ESTATE OF THE LAND TO BE SUBDIVIDED IS SUBJECT TO FULL AND EFFECTIVE DEVELOPMENT OF THE MINERAL ESTATE
- 3. THE SURFACE ESTATE OF THE LAND TO BE SUBDIVIDED IS SUBJECT TO FULL AND EFFECTIVE DEVELOPMENT OF THE MINERAL ESTATE
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GENERAL NOTES

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NOTE TO ASSESSOR

THE SURFACE ESTATE OF THE LAND TO BE SUBDIVIDED IS SUBJECT TO FULL AND EFFECTIVE DEVELOPMENT OF THE MINERAL ESTATE

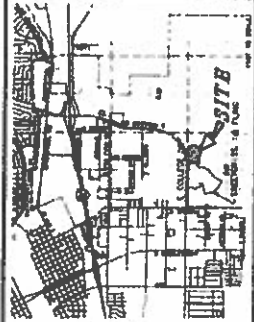
BOUNDARY CURVE TABLE

CHORD	BEARS	CHORD BEARS	CHORD LENGTH	ARC LENGTH
1	100.00	100.00	100.00	1.5708
2	100.00	100.00	100.00	1.5708
3	100.00	100.00	100.00	1.5708
4	100.00	100.00	100.00	1.5708
5	100.00	100.00	100.00	1.5708
6	100.00	100.00	100.00	1.5708
7	100.00	100.00	100.00	1.5708
8	100.00	100.00	100.00	1.5708
9	100.00	100.00	100.00	1.5708
10	100.00	100.00	100.00	1.5708

ROAD CENTERLINE CURVE TABLE

CHORD	BEARS	CHORD BEARS	CHORD LENGTH	ARC LENGTH
1	100.00	100.00	100.00	1.5708
2	100.00	100.00	100.00	1.5708
3	100.00	100.00	100.00	1.5708
4	100.00	100.00	100.00	1.5708
5	100.00	100.00	100.00	1.5708
6	100.00	100.00	100.00	1.5708
7	100.00	100.00	100.00	1.5708
8	100.00	100.00	100.00	1.5708
9	100.00	100.00	100.00	1.5708
10	100.00	100.00	100.00	1.5708

VICINITY MAP



FILING RECORD

RECORDED IN THE CITY OF CHEYENNE, WYOMING, ON 09/17/2019

FILE TABLE

FILE	DATE	DESCRIPTION
1	09/17/2019	RECORDED IN THE CITY OF CHEYENNE, WYOMING, ON 09/17/2019

APPROVALS

APPROVED BY THE CITY OF CHEYENNE PLANNING COMMISSION ON 09/17/2019

CERTIFICATE OF SURVEYOR

THE SURVEYING INSTRUMENT WAS SUBMITTED TO ME BY THE CITY OF CHEYENNE, WYOMING, ON 09/17/2019



SITUATED IN THE NW 1/4 OF SECTION 10, TOWNSHIP 13 NORTH, RANGE 66 WEST, 8TH P.M. AND INCLUDING A REPLAY OF ALL OF BLOCK 3, (LOTS 1, 2 & 3 INCLUSIVE), SWEETGRASS 1st FLING, CITY OF CHEYENNE, LARAME COUNTY, WYOMING.

STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS